



Scientific Working Group on Digital Evidence

Considerations for Focused Collection of Digital Evidence

SWGDE 14-F-003-2.0

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1. Purpose

This document provides some considerations the examiner can leverage when performing a focused collection of digital evidence.

Due to the continued rapid increase in storage media capacity, it is often impractical or impossible to perform a comprehensive collection without prioritizing a targeted subset of data or devices. Additionally, there may be situations in which a focused collection of data (e.g., a company's email files) is appropriate. This is not to say a focused collection is recommended or acceptable in all circumstances. Examiners must take into a consideration a variety issues and allocate resources effectively to prioritize a focused data collection

2. Scope

The primary audience for this document is digital forensic practitioners. This document provides considerations for narrowing the scope of a digital evidence collection. The objective of focused data collection is to optimize resource efficiency, including personnel, time, and equipment, while ensuring compliance with legal requirements such as maintaining chain of custody, adhering to privacy regulations, and preserving the admissibility of evidence in court.

3. Limitations

This document and the considerations contained herein may not apply in some circumstances. In all cases, examiners are encouraged to consult with the requestor and/or competent legal authority having jurisdiction in their applicable venue.

4. Considerations

The following list of considerations is not intended to be all-inclusive, but should serve as a guide in circumstances where the examiner is contemplating a focused collection of a subset of data related to an investigation.

4.1 Impartiality and Risk of Exclusion

When conducting a focused or triage-based collection, examiners must remain vigilant to avoid introducing bias into the selection process. A narrowly scoped collection may inadvertently exclude exculpatory evidence—information that could support the innocence of a subject under investigation. Refer to *SWGDE 16-F-002-2.1 Considerations for Required Minimization of Digital Evidence Seizure* [1] for further guidance. To mitigate this risk, examiners should ensure their methodology is well-documented, repeatable, and defensible. The selection criteria should be based on investigative objectives.

4.2 Examiner Experience

Focused collections should begin with clearly defined acquisition objectives. The examiner's expertise significantly shapes the approach to focused data collection.

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4.3 Specifics of Investigation

Each investigation has unique objectives. Considerations should focus on the data collection process and overall objectives. For instance, an insider threat investigation may prioritize email correspondence and access logs, while a financial fraud case may focus on accounting records or transaction databases. Understanding the case's goals ensures only the most relevant data or devices (e.g., a suspect's laptop or server) are targeted, aligning the examination with the investigation's needs.

Examiners should maintain clear communication with investigators, legal counsel, and other stakeholders to ensure alignment on scope, expectations, and limitations. Early collaboration helps prevent misunderstandings and ensures the collection strategy supports the overall investigative goals.

4.4 Legal Restrictions / Scope Limitations

Legal and privacy frameworks, such as General Data Protection Regulation (GDPR), California Consumer Privacy Act (CCPA), or jurisdictional regulations, impose constraints on data collection. Privacy laws may limit access to personal data, requiring examiners to focus only on specific custodians or data types. Additionally, maintaining a proper chain of custody and adhering to court-admissible procedures is critical to ensure evidence validity. For example, an examiner may need to exclude certain data to comply with privacy regulations or limit the scope to court-approved parameters. For reference on "legal limitations for collections," see *SWGDE 16-F-002-2.1 Considerations for Required Minimization of Digital Evidence Seizure* [1].

4.5 Burden of Proof and Investigative Scope

The standard of proof required in an investigation—whether for legal proceedings or internal policy enforcement—directly influences the scope and depth of data collection. Criminal cases, which require proof "beyond a reasonable doubt," often necessitate a more exhaustive approach to evidence gathering to ensure that all relevant information is identified and preserved. Civil cases, governed by a "preponderance of evidence" standard, may allow for a more focused approach. In contrast, internal investigations into policy violations may prioritize speed and relevance over legal admissibility, emphasizing actionable insights. Understanding the applicable burden of proof helps practitioners tailor their collection strategy to the context, balancing thoroughness with efficiency.

4.6 Volume of Data

The rapid growth in digital storage media capacity, such as multi-terabyte hard drives or cloud repositories, often makes comprehensive collections impractical. To manage this, examiners may prioritize specific file types (e.g., user created documents, emails), time periods, or devices based on relevance. For instance, in a case involving intellectual property theft, an examiner might focus on recently modified documents rather than collecting an entire server.

Another example is the collection of surveillance video which is often stored on systems with very high capacities. To limit acquisition to only necessary video frames, a precise understanding of the timeframe may be required.

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4.7 Operational Constraints in Live Environments

Practical limitations—such as limited network bandwidth, restricted access to cloud-based data, or the need to maintain uninterrupted business operations—can necessitate a focused and adaptive collection strategy. For instance, in environments where downtime is unacceptable, such as financial transaction servers or Operational Technology (OT) systems in industrial control networks, examiners may need to use remote acquisition tools or schedule collections during maintenance windows. Similarly, in healthcare or emergency response systems, preserving system availability while collecting evidence is critical. These constraints require balancing forensic thoroughness with operational continuity.

4.8 Ownership (custodian) of Devices / Data

The ownership of devices—whether company-issued or personally owned—affects the scope of collection. Legal and privacy considerations require examiners to obtain proper authorization before accessing devices, particularly for employee-owned devices. For example, an investigation may be limited to company-issued laptops to avoid privacy violations, requiring examiners to carefully define the scope based on device ownership.

5. Documentation and Auditability

All decisions made during a focused collection must be thoroughly documented. This includes, but not limited to:

- The rationale for selecting specific data sources or timeframes
- Any constraints (legal, technical, or logistical) that influenced scope
- Tools and methods used
- Any known limitations or exclusions

Proper documentation ensures transparency, supports reproducibility, and provides a defensible record in legal proceedings.

6. References

[1] Scientific Working Group on Digital Evidence. *Considerations for Required Minimization of Digital Evidence Seizure*. SWGDE 16-F-002-2.1, *SWGDE*, 2024. <https://www.swgde.org/16-f-002/>.

7. Additional Resources

Scientific Working Group on Digital Evidence. *Best Practices for Apple MacOS Forensic Acquisition*. SWGDE 23-F-005-1.0, *SWGDE*, 2024. <https://www.swgde.org/23-f-005/>.

Scientific Working Group on Digital Evidence. *Best Practices for Computer Forensic Acquisitions*. SWGDE 17-F-002-2.1, *SWGDE*, 2023. <https://www.swgde.org/17-f-002/>.

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Scientific Working Group on Digital Evidence. *Best Practices for Digital Evidence Acquisition, Preservation, and Examination from Cloud Service Providers*. SWGDE 23-F-004-1.1, SWGDE, 2024. <https://www.swgde.org/23-f-004/>

Scientific Working Group on Digital Evidence. *Best Practices for Remote Collection of Digital Evidence from an Endpoint*. SWGDE 22-F-003-2.0 SWGDE, 2022. <https://www.swgde.org/22-f-003/>.

Scientific Working Group on Digital Evidence. *Core Competencies for Digital Forensics*. SWGDE 12-F-006-2.0, SWGDE, 2024. <https://www.swgde.org/12-f-006/>.

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8. History

Revision	Issue Date	History
1.0 DRAFT	6/6/2014	Original draft created and voted for release as a Draft for Public Comment.
1.0 DRAFT	6/12/2014	Formatting and technical edit completed for release as a Draft for Public Comment.
1.0 DRAFT	8/28/2014	No changes made; voted to publish as an Approved Document.
1.0	9/5/2014	Formatting and technical edit performed for release as an Approved Document.
2.0 DRAFT	5/20/2025	Updated Section 4, References, and currently available Additional Resources.
2.0 DRAFT	6/29/2025	SWGDE voted to release as a Draft for Public Comment. Formatted for release as a Draft for Public Comment.
2.0 DRAFT	9/18/2025	No changes made; moved forward for SWGDE membership vote to release as a Final Approved Document.
2.0	11/18/2025	SWGDE voted to approve as Final Approved Document. Formatted for release as a Final Approved Document.

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